

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
OMAR CORREA,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
BRONX County as the
place of trial
The basis of venue is
CPLR 504 (3)

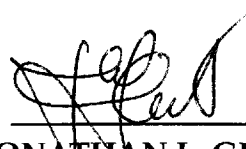
CITY OF NEW YORK, P.O. KIEL SUI, P.O. ROBERT
TROIANI, and OFFICERS JOHN AND JAMES DOE,
names presently unknowable by Plaintiff and
meant to designate additional offending officers,
Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

April 30, 2018


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. Kiel Sui, Shield 7315 and P.O. Robert Troiani, Shield 16280 of the 43rd Precinct
900 Fteley Avenue Bronx, NY 10473

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
OMAR CORREA,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. KIEL SUI, P.O. ROBERT
TROIANI and OFFICERS JOHN AND JAMES DOE,
names presently unknowable by Plaintiff and meant to
designate additional offending officers,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF OMAR CORREA

1. At the time of the commencement of this action, Plaintiff OMAR CORREA was
and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.
3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and
still is, a Municipal Corporation and body politic, duly formed, organized and existing
under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about February 17, 2017, 2017 P.O. KIEL SUI was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about February 17, 2017, at approximately 12 A.M., P.O. KIEL SUI was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about February 17, 2017, P.O. ROBERT TROIANI was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about February 17, 2017, at approximately 12 A.M., P.O. ROBERT TROIANI was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about February 17, 2017, OFFICER[S] JOHN AND/OR JAMES DOE, whose actual identities are presently unknowable by Plaintiff but are necessarily known by defendants as a result of their involvement in the subject arrest and prosecution of Plaintiff, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about February 17, 2017 at approximately 12 A.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.
11. That at the aforesaid time and plaintiff OMAR CORREA was lawfully present at or near the corner of Elder Avenue and Watson Avenue, Bronx, New York.
12. At the aforesaid time and place, Defendants did come in the vicinity where plaintiff was and proceeded to detain Plaintiff and then, at a location that Plaintiff had not been, claimed they discovered a bag and claimed that bag contained a weapon and ammunition.
13. At the aforesaid time and place, Defendants did then arrest Plaintiff under charges of possession of a weapon and ammunition.
14. That at no time did plaintiff ever possess said items, and in fact could not have possessed said items.
15. That on or about February 17, 2017 at approximately 12 A.M., at or near 1121 Avenue, Bronx, New York, the plaintiff OMAR CORREA was improperly arrested, and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine OMAR CORREA.

16. That the defendants, their agents, servants and/or employees willfully and unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement was thereby caused fright, shock, emotional distress and physical consequences.
17. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.
18. That the defendants P.O. KIEL SUI, P.O. ROBERT TROIANI and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby initiating and causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed.
19. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.
20. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens and engaging in a policy and

procedure of arresting persons upon pretext and /or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and the subjugate minority population without reprimand to the offending officers.

21. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

22. Said policy, practice and procedure of having arrest quotas and /or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department P.O. Jason Arbeen, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

23. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason

to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and procedure of, for instance, arresting all persons for conduct that is not criminal.

24. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department.

25. Additionally, defendants as named herein have condoned, permitted and caused a policy, practice and procedure of arresting persons, almost exclusively minority persons in localities where the majority of the population are of a racial minority, under the pretense of violating Penal Laws which specify the crime of possession of things where the arrested persons do not so possess, and falsely swearing that they observed innocent persons in possession of such things, or acting in concert for the sale and possessing of things falsely for the purposes of satisfying arrest quotas.

26. Moreover, patterns of such the aforesaid conduct of arresting persons for such charges as possession of a weapon or ammunition that said persons did not, in fact possess, is demonstrated because multiple individuals have been subject to the same

unjustified and fabricated charges, to wit, as a sample and small example: DUANE HENRY and SIMONE PHIPPS on July 10, 2012 and GEOFFREY ROBINSON on July 7, 2015 and ELIJAH SMITH on May 27, 2016, ROSHID GATHERS on October 29, 2016, and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OF NEW YORK agencies and departments

27. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the named defendants and their supervisors and commanders and the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his property and person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

28. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

29. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

30. That as a result of the foregoing, the plaintiff OMAR CORREA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF OMAR CORREA

31. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 30 as though more fully set forth herein.

32. That on or about May 1, 2018, Plaintiff caused, by application to the Court for permission to file a nunc pro tunc timely Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by delivering a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as

then practicable, said application having requested permission to deem fulfilled such requirements as may have been necessary to timely commence the within action.

33. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

34. That on or about February 17, 2017 at approximately 12 A.M., at or near the corner of Elder Avenue and Watson Avenue, Bronx, New York, the plaintiff OMAR CORREA was improperly arrested, and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine OMAR CORREA.

35. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

36. That the defendants, their agents, servants and/or employees willfully and unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement was thereby caused fright, shock, emotional distress and physical consequences.

37. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

38. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

39. That as a result of the foregoing, the plaintiff OMAR CORREA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF OMAR CORREA

40. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 39 as though more fully set forth herein.

41. That during their aforesaid wrongful arrest, the defendants, their agents, servants and/or employees did forcibly and unlawfully restrain Plaintiff, and did thereby offend Plaintiff with unwanted touching, which constituted assaults and battery upon Plaintiff .

42. As a result of the aforesaid assaults and battery, Plaintiff received injuries with accompanying physical and emotional pain and suffering; that the Plaintiff was made, still are and will continue to be sick, sore and sustained other injuries, both internal and external; that it was necessary and will be so in the future, to care for and render,

treatment and attention of the Plaintiff and for the purchase of drugs and medicines, and that Plaintiff were and in the future will be prevented from attending to Plaintiff's usual vocation and avocations and were otherwise damaged and injured.

43. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

44. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

45. That as a result of the foregoing, the Plaintiff was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF OMAR CORREA

46. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 45 as though more fully set forth herein.

47. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

48. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and /

or servants and negligently retained its employees, agents, and / or servants in the proper conducting of arrests.

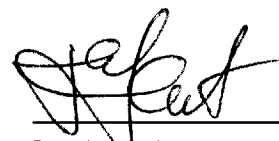
49. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff OMAR CORREA was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

50. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First ,

Second, Third and Forth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
April 30, 2018



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
OMAR CORREA

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

P.O. Kiel Sui, Shield 7315 and P.O. Robert Troiani, Shield 16280
of the 43rd Precinct
900 Fteley Avenue Bronx, NY 10473

PLAINTIFF'S VERIFICATION

OMAR CORREA affirms the following to be true under the penalties of perjury:

I am the Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.

Omar Correa
OMAR CORREA

Sworn before me this
30 day of April, 2018

[Signature]
Notary Public

JONATHAN LOUIS GLEIT
Notary Public, State of NY
No. 31-4979332
Qualified in Westchester County
Commission Expires March 25, 2019